Chaudhari Nagjibhai Alias Rameshbhai ... vs State Of Gujarat on 28 March, 2025

Author: Ilesh J. Vora

Bench: Ilesh J. Vora

NEUTRAL CITATION

R/CR.A/122/2018 JUDGMENT DATED: 28/03/2025

undefined

IN THE HIGH COURT OF GUJARAT AT AHMEDABAD

R/CRIMINAL APPEAL (AGAINST CONVICTION) NO. 122 of 2018

With
CRIMINAL MISC.APPLICATION (FOR SUSPENSION OF SENTENCE) NO.
4 of 2024
In R/CRIMINAL APPEAL NO. 122 of 2018

FOR APPROVAL AND SIGNATURE:

HONOURABLE MR. JUSTICE ILESH J. VORA

and
HONOURABLE MR. JUSTICE SANDEEP N. BHATT

==========

Approved for Reporting Yes No

==========
CHAUDHARI NAGJIBHAI ALIAS RAMESHBHAI SAGRAMBHAI
Versus
STATE OF GUJARAT
==========
Appearance:
MR IH SYED, SR ADV WITH MR Mr. Kirit Chaudhary WITH MR
DHARMIK R BAROT(8785) WITH
MR TANMAY B KARIA(6833) for the Appellant
MR JAY MEHTA APP for Respondent
==========

CORAM:HONOURABLE MR. JUSTICE ILESH J. VORA
and
HONOURABLE MR. JUSTICE SANDEEP N. BHATT

Date : 28/03/2025

ORAL JUDGMENT

(PER : HONOURABLE MR. JUSTICE ILESH J. VORA)

1. This criminal appeal preferred by the sole appellant herein under Section 374(2) of the Cr.P.C. is directed against the impugned judgment of conviction and Page 1 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025 NEUTRAL CITATION R/CR.A/122/2018 JUDGMENT DATED: 28/03/2025 undefined order of sentence dated 21.12.2017 passed by the learned Sessions Judge, Mehsana in Sessions Case No.28 of 2017 by which the appellant has been convicted under Sections 302 , 323 , 504 read with Section 114 of the IPC and Section 135 of the Gujarat Police Act, and sentenced as tabulated as under:

> Conviction Imprisonment Fine In default of fine to under Section undergo 302 of IPC Life imprisonment Rs.5000/- RI for five months 323 of IPC RI for one year Rs.1000/- RI for one month 504 of IPC RI for one year Rs.1000/- RI for one month 135 of

G.P. Act SI for one year Rs.1000/- SI for one month The trial court ordered that the sentences imposed on the appellant shall run concurrently.

2. The case of the prosecution leading to the conviction of the appellant sole accused Chaudhary Nagji @ Ramesh Sagram is as follows:

(A) On 04.11.2016 at about 03:00 o'clock, the appellant accused took a knife from his pan-shop and inflicted a blow on the right side of the deceased's chest, as a result of which, the deceased Laxmanji succumbed to injuries. The said incident occurred on the road side, Rampura cross road, Mehsana.

Page 2 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025

 (B) The background facts of the alleged incident of murder are that,

- The deceased Laxmanji was close friend of complainant Thakore Chenaji (PW:10). The complainant was working as a Watchman with factory named Ami Steel, situated nearby the place of the incident and living with his family in the compound of the factory. The complainant PW:10 side by side also running as business of cold-drinks, in a lorry nearby his factory.

- The deceased Laxmanji on the day of incident i.e. 04.11.2016, was sitting on the lorry as PW:10 complainant was busy with some other works.

- The accused Chaudhary Nagji Sagram was having a pan-shop opposite side of the road where the lorry was parked.

- On the day of incident, PW:10 after some time, had come to his lorry and both deceased Laxmanji, and PW:10 were present on the lorry.

- The accused Nagjibhai came on the lorry and started demanding Rs.1,000/- that the complainant owned to him. The complainant PW:10 asked for time as he did not have Page 3 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025 sufficient money which the accused refused it and took a bottle of soda and told the complainant to take it back once he paid his dues. At that moment, the deceased assured that the PW:10 will make the payment and there was verbal spat with the accused, as a result, the accused got agitated and hit the head of the deceased with the nearby tree and had left the place taking away the soda bottle.

- Thereafter, the deceased followed the accused to his pan shop and there scuffle took place, as a result, the accused allegedly took a knife from his pan shop and inflicted one blow on the right side of the deceased's chest and the accused no.2 - the father of accused no.1 had also caused bodily injuries to the deceased as at the time of incident, he was accompanied to his son.

- That the deceased was taken to the government hospital, Mehsana where he declared brought dead.

- On the basis of information received, the police went to the hospital where PW:10 disclosed his FIR (Exh.44).

3. That the offence being registered against the appellant accused and his father, the investigation Page 4 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025 officer PW:15 proceeded to investigate the case and during the course of investigation, he sent the dead body for postmortem, took visit the place of incident and drew panchnama of place of incident and obtained the necessary samples for FSL, recorded the statement of material witnesses, arrested the accused, seized and recovered the knife allegedly used by the appellant accused in commission of the offence, obtained N.C. case papers, and sent the muddamal to the the FSL and at the end of investigation, the chargesheet came to be filed before the Jurisdictional Court. The case was committed to the court of sessions.

4. After due framing of charge and upon accused not pleading guilty, the trial commenced before the Sessions Judge, Mehsana. In order to prove the charge, the prosecution examined 15 witnesses and exhibited 36 documents:

Oral evidence PW 1 - Exh.12 Dr. Dilipkumar Keshavlal Thakkar, medical officer PW 2 - Exh.18 Thakor Diwanji Motiji, panch witness PW 3 - Exh.19 Sathwara Mehulkumar Sakalchand, panch witness PW 4 - Exh.25 Thakor Dashrathji Suraji, panch witness PW 5 - Exh.26 Afjalkhan Sharifkhan Kureshi, panch witness PW 6 - Exh.32 Chaudhari Lavjibai Mahadevbhai, panch witness Page 5 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025 PW 7 - Exh.37 Chaudhari Parsangbhai Narsangbhai, panch witness PW 8 - Exh.39 Patel Amratbhai Parshottambhai, panch witness PW 9 - Exh.41 Jitendrabhai Rupabhai Parmar PW 10 - Exh.43 Thakor Chenaji Somaji, Complainant PW 11 - Exh.47 Thakor Pushpaben Chenaji PW 12 - Exh.48 Thakor Sureshji Kachraji PW 13 - Exh.50 Thakor Kantiji Kachraji PW 14 - Exh.51 Parmar Dineshchandra Lavjibhai, Police Station Officer PW 15 - Exh.60 Solanki Jivrajbhai Vashrambhai, Investigation Officer Documentary evidence Exh.13 Post mortem note of deceased Lakshmanji Exh.14 Certificate of cause of death of Lakshmanji Exh.15 Note of collection of samples in test tube Exh.16 Yadi for post mortem Exh.17 Inquest panchnama Exh.20 Panchnama of scene of offence Exh.21-24 Panch slips Exh.27 Panchnama of recovery of clothes of accused Nagjibhai Sagrambhai, mobile and motorcycle Exh.28-31 Panch slips Exh.33 Panchnama of production of clothes of accused Sagrambhai Shamalbhai and his physical examination Exh.34-36 Panch slips Exh.42 Map of place of offence Exh.44 Complaint Exh.52 Station Diary Page 6 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025 Exh.53 Order of Deputation Exh.54 Vardhi report Exh.55 Report of serious offence Exh.56 Wireless message for visitation Exh.57 Wireless message for sending FSL van at scene of offence Exh.58 Copy of report sent to Executive Magistrate for inquest Exh.61 Report for registration of offence Exh.62 Preliminary report of FSL van Exh.63 Copy of police report sent with dead body Exh.64 Report of Mukeshji Jesangji, Additional Head Constable Exh.65-66 Report for entry in station diary regarding arrest of accused Exh.67 Copy of deputation order for P.N.C no.32/16 Exh.68 Copy of report for registration of P.N.C Exh.69 Copy of complaint by Chaudhari Nagjibhai alias Rameshbhai Sagrambhai Exh.70 Copy of report for drawing map of scene of offence Exh.71 Copy of notification for prohibition of arms and weapons Exh.72 Muddamal forwarding note Exh.73 Receipt by FSL regarding receiving muddamal Exh.74 Forwarding letter by FSL Exh.75 FSL report Exh.76 Serological report Exh.77 Report by Geology Department of FSL

5. After closure of the prosecution evidence, the appellant was questioned under Section 313 Cr.P.C. to which he stated that, they have been falsely Page 7 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025 NEUTRAL CITATION R/CR.A/122/2018 JUDGMENT DATED: 28/03/2025 undefined implicated in the offence of murder and further stated that, since long, the PW:10 despite of so many reminders, did not pay his dues of Rs.1,000/- and the deceased was present at the place, slapped him and agitated on the issue and during this scuffles, he himself sustained injuries with the knife which it was having with him. The accused has denied that he stabbed the deceased.

6. The learned Sessions Judge after hearing the parties and upon appreciation of the evidence adduced by the prosecution, found the appellant-accused guilty of the charge and consequently, he has been convicted under Section 302 of the IPC. The accused no.2 has been acquitted of all the charges.

7. Being dissatisfied with the judgment and order of conviction and sentence, the accused has come up with the present appeal.

8. We have heard learned Senior Counsel Mr. I.H Syed, assisted by Mr. Kirit Chaudhary and Mr. Jay Mehta, learned APP for the respective parties.

9. Mr. I.H. Syed, learned Senior Counsel, while assailing the judgment of the conviction and order of sentence, stated that his submissions are limited to the extent that the Trial Court committed a serious error in Page 8 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025 NEUTRAL CITATION R/CR.A/122/2018 JUDGMENT DATED: 28/03/2025 undefined holding the appellant accused guilty of the offence of murder as the appellant accused did not have any intention to kill the deceased. That there are total three eyewitnesses in the present case viz. PW:10 Chenaji - complainant, PW:11 - Pushpaben wife of the complainant and PW:12 Sureshbhai. All three eyewitnesses have admitted that it was the deceased who provoked the accused and that in this sudden provocation, the appellant accused inflicted one blow with a knife on the right side of the chest. It was the deceased who had followed the accused and restrained him for taking away the soda bottle and on that issue, this scuffle took place at the pan shop and without pre-meditation in a sudden fight, in hit of passions, the weapon knife which was lying in the shop for daily use allegedly took by the deceased and a single blow was inflicted. If the accused had intention to kill the deceased, he would have done so in the first quarrel, however, the accused left the lorry of the PW:10 and went towards his pan-shop and it was the deceased who followed him. In such circumstances, the act of the accused falls within the exception to Section 300 of the IPC and the case at the most, would fall under Part II of Section 304 of the IPC.

Page 9 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025

NEUTRAL CITATION R/CR.A/122/2018 JUDGMENT DATED: 28/03/2025 undefined

10. Mr. Syed, learned Senior Counsel under circumstances as referred to above, has submitted that, as on date, the accused has undergone 8 years of his imprisonment and having regard to the peculiar facts and circumstances of the present case, the conviction for the act of murder may be modified to culpable homicide not amounting to murder, punishable under Section 304 Part-II of the IPC .

11. On the other hand, Mr. Jay Mehta, learned APP vehemently opposed the appeal and contended that no error either on law or facts could be said to have been committed by the Court below in holding the guilty for the offence of murder. He would urge that the injury which was on vital part, sufficient in ordinary course of the nature to cause death and having regard to the evidence on record, the injuries were intended to cause death and therefore, the case of the accused would not fall any exception to Section 300 and there is no ground exists to extend the benefit of exception. In such circumstances, learned APP prays that there being no merits in the appeal and the same may be dismissed.

12. We have heard learned counsel appearing for the respective parties and considered the rival submissions made hereinabove and also went through Page 10 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025 NEUTRAL CITATION R/CR.A/122/2018 JUDGMENT DATED: 28/03/2025 undefined the record with utmost circumspection.

13. At the outset, we may observe that the death of the deceased was homicidal in nature and there is no dispute about it.

14. The only question which requires for our consideration is with regard to whether case falls within the ambit of culpable homicide amounting to murder punishable under Section 302 of the IPC or it was culpable homicide not amounting to murder punishable under Section 304 as argued by the counsel appearing for the accused?

15. Having regard to the contentions on the aspect of occurrence, we are satisfied that the prosecution beyond reasonable doubt established the incident, as narrated by the complainant PW-10 Thakor Chenaji. So far as medical evidence is concerned, the doctor PW- 1, who had conducted the Postmortem on the body of the deceased, noticed the following antimortum injuries:

(i) Long line shaped wound of size 7cm being 4 cm away from earlobe of right ear on right side of neck extending towards front side.

(ii) Contused lacerated wound of size 1cm x 0.5cm and red color, deep upto skin flap over parietal region on left side.

Page 11 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025

NEUTRAL CITATION R/CR.A/122/2018 JUDGMENT DATED: 28/03/2025 undefined

(iii) Wound of size 4cm x 2cm x 6cm right clavicle between rib no. 5 and 6 on right side of chest 14cm downwards and inside edge was 3cm from mid-line and outside edge was 3cm from right nipple. The wound had sharp margins wherein outside edge was sharp and inside edge was circular type.

According to opinion of the doctor, the injury no. 3 was fatal and same was sufficient in ordinary course to cause the death. The opinion on the aspect of cause of death was haemorrhagic shock due to chest injury. The doctor had also opined that, the injury could be possible with the knife seized by the police in the present case. Thus, it appears that there was a single blow on the right side of the chest of the deceased. It is relevant to note that, generally the heart is always at the left side, however, in the present case, the heart of the deceased exceptionally found in the right side of the chest.

16. In order to determine the issue as referred, it will be relevant to refer the testimony of complainant - Chenaji PW-10 as he was

present at the spot. The wife of the complainant PW-11 and PW-12, who is owner of Tea Stall nearby the spot are not required to be referred as their evidence does not throw a light on the incident and other facts. The PW-10 in his cross-

Page 12 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025

 examination stated thus:

> "It is true that, Nagjibhai was demanding Rs.1000/- as a rent from me. The rent had not been paid for 10 days. It is true that, Nagjibhai and Laxmanji had never entered into any transaction. It is true that, Nagjibhai had been asking me for his money since last 4 to 5 days. It is also true that Nagjibhai did not have demanded any money from Laxmanji. It is also true that, I did not stop Nagjibhai from carrying the Soda Bottle. It is true that, Laxmanji refused to let Nagjibhai carry with the bottle and there was a heated arguments with them. It is true that Laxmanji scolded Nagjibhai and Nagjibhai scolded Laxmanji. The said heated arguments lasted for 2 to 5 minutes. It is true that there was a fight and there was a commotion and there was a fight. It is true that, the scuffle between two took place and it was lasted for 2 to 5 minutes. It is true that Nagjibhai stabbed the deceased in a fit of rage."

17. We may also refer the complaint NC case No. 32 of 2016 registered with Mehsana Taluka Police Station for the offences punishable under Sections 323, 504 read with Section 114 of the IPC allegedly, lodged by Page 13 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025 NEUTRAL CITATION R/CR.A/122/2018 JUDGMENT DATED: 28/03/2025 undefined the appellant accused Nagjibhai and same was registered at about 7=00 PM against deceased Laxmanji and PW-10 Chenaji. The factum of NC case being brought on record by the police witnesses. In the complaint, the accused - appellant, alleged that, when he asked the PW-10 Chenaji for repayment of his dues, the deceased was present there, had beaten him and hurled abusive.

18. We have minutely scanned the entire evidence led by the prosecution. The testimony of PW-10 would show that the accused and his father doing their business in the name of 'Sai Pan Parlour' at the place mentioned in the place of panchnama. The PW-10 right opposite the pan shop, doing business of cold drinks in the lorry. Admittedly, the deceased Laxmanji was a third party, so far dispute of Rs.1000/- is concerned. The first episode occurred when the accused and his father came to lorry of PW- 10 and demanded Rs.1000/- for which, the PW-10 could not pay the amount and when the appellant accused took the soda bottle and told the complainant that, he will take away the soda bottle and take it back, once you paid the due amount. Laxmanji on this aspect intervened and started quarreling with the accused. As a result, the accused was got furious and his head was struck with the tree Page 14 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025 NEUTRAL CITATION R/CR.A/122/2018 JUDGMENT DATED: 28/03/2025 undefined by him and thereafter, the accused left the place and by crossing the road, he reached at his pan shop. The deceased Laxmanji did not stop them and went to the shop of the accused, where after heated exchange of words, the scuffle took place between them, which let to the occurrence to his murder. Thus, it reveal that when first incident occurred, the accused was not armed with the knife and did not cause any further bodily injury to the deceased. It was the deceased who came at the pan shop of the accused and show his power by entering the verbal spat with the accused. We paused for a moment here and by reading the N.C. case allegedly registered against the accused, as referred above, it reveal that, the deceased slapped the accused as by any means, he wanted soda bottles from the accused, which allegedly took away by him in lieu of Rs.1000/-. In such circumstances, having regard to the peculiar facts and circumstances of the present and the manner in which the incident occurred, we are of the considered view that, there was no intention to cause death on the part of the appellant accused. Admittedly, the heart of the deceased located at the right side of his body and it cannot be inferred that, knowingly the accused inflicted the blow on the right side of the chest of the deceased. In these background facts, we may profitably refer the Page 15 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025 NEUTRAL CITATION R/CR.A/122/2018 JUDGMENT DATED: 28/03/2025 undefined observation made by the Supreme Court in case of Pulicherla Nagaraju @ Nagaraja Reddy Versus State Of Andhra Pradesh, reported in 2006 (11) SCC 444, the Supreme Court in para-29 observed thus:

> "29. Therefore, the court should proceed to decide the pivotal question of intention, with care and caution, as that will decide whether the case falls u/s. 302 or 304 Part I or 304 Part II. Many petty or insignificant matters - plucking of a fruit, straying of a cattle, quarrel of children, utterance of a rude word or even an objectionable glance, may lead to altercations and group clashes culminating in deaths. Usual motives like revenge, greed, jealousy or suspicion may be totally absent in such cases. There may be no intention. There may be no pre-meditation. In fact, there may not even be criminality. At the other end of the spectrum, there may be cases of murder where the accused attempts to avoid the penalty for murder by attempting to put forth a case that there was no intention to cause death. It is for the courts to ensure that the cases of murder punishable u/s. 302, are not converted into offences punishable u/s. 304 Part I/II, or cases of culpable homicide not amounting to murder, are treated as murder punishable u/s. 302. The intention to cause death can be gathered generally from a combination of a few or several of the following, among other, circumstances :
>
> (i) nature of the weapon used; (ii) whether the weapon was carried by the accused or was picked up from the spot; (iii) whether the blow is aimed at a vital part of the body; (iv) the amount of force employed in causing injury; (v) whether the act was in the course of sudden Page 16 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025 NEUTRAL CITATION R/CR.A/122/2018 JUDGMENT DATED: 28/03/2025 undefined quarrel or sudden fight or free for all fight; (vi) whether the incident occurs by chance or whether there was any pre- meditation; (vii) whether there was any prior enmity or whether the deceased was a stranger; (viii) whether there was any grave and sudden provocation, and if so, the cause for such provocation;
>
> (ix)whether it was in the heat of passion; (x) whether the person inflicting the injury has taken undue advantage or has acted in a cruel and unusual manner; (xi) whether the accused dealt a single blow or several blows. The above list of circumstances is, of course, not exhaustive and there may be several other special circumstances with reference to individual cases which may throw light on the question of intention."

19. Recently, the Supreme Court in the case of Anbazhagan Vs. State represented by Inspector of Police, 2023 SCC on-line SC, 857, has succinctly explained the fine distinction between the cases that would fall under Section 302 and Section 304 Part (I) and (II) of the IPC . The supreme Court after detailed survey on the precedent on the point, finally, summed-up as follows:

> "Few important principles of law discernible from the aforesaid discussion may be summed up thus:-

(1) When the court is confronted with the question, what offence the accused could be said to have committed, the true test is to find out the intention or knowledge of the Page 17 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025 NEUTRAL CITATION R/CR.A/122/2018 JUDGMENT DATED: 28/03/2025 undefined accused in doing the act. If the intention or knowledge was such as is described in Clauses (1) to (4) of Section 300 of the IPC, the act will be murder even though only a single injury was caused. To illustrate : 'A' is bound hand and foot. 'B' comes and placing his revolver against the head of 'A', shoots 'A' in his head killing him instantaneously.

Here, there will be no difficulty in holding that the intention of 'B' in shooting 'A' was to kill him, though only single injury was caused. The case would, therefore, be of murder falling within Clause (1) of Section 300 of the IPC. Taking another instance, 'B' sneaks into the bed room of his enemy 'A' while the latter is asleep on his bed. Taking aim at the left chest of 'A', 'B' forcibly plunges a sword in the left chest of 'A' and runs away. 'A' dies shortly thereafter. The injury to 'A' was found to be sufficient in ordinary course of nature to cause death. There may be no difficulty in holding that 'B' intentionally inflicted the particular injury found to be caused and that the said injury was objectively sufficient in the ordinary course of nature to cause death. This would bring the act of 'B' within Clause (3) of Section 300 of the IPC and render him guilty of the offence of murder although only single injury was caused.

(2) Even when the intention or knowledge of the accused may fall within Clauses (1) to (4) of Section 300 of the IPC, the act of the accused which would otherwise be murder, will be taken out of the purview of murder, if the accused's case attracts any one of the five exceptions enumerated in that section. In the event of the case falling within any of those exceptions, the offence would be Page 18 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025 NEUTRAL CITATION R/CR.A/122/2018 JUDGMENT DATED: 28/03/2025 undefined culpable homicide not amounting to murder, falling within Part 1 of Section 304 of the IPC, if the case of the accused is such as to fall within Clauses (1) to (3) of Section 300 of the IPC. It would be offence under Part II of Section 304 if the case is such as to fall within Clause (4) of Section 300 of the IPC. Again, the intention or knowledge of the accused may be such that only 2nd or 3rd part of Section 299 of the IPC, may be attracted but not any of the clauses of Section 300 of the IPC. In that situation also, the offence would be culpable homicide not amounting to murder under Section 304 of the IPC. It would be an offence under Part I of that section, if the case fall within 2nd part of Section 299, while it would be an offence under Part II of Section 304 if the case fall within 3rd part of Section 299 of the IPC.

(3) To put it in other words, if the act of an accused person falls within the first two clauses of cases of culpable homicide as described in Section 299 of the IPC it is punishable under the first part of Section

304. If, however, it falls within the third clause, it is punishable under the second part of Section 304. In effect, therefore, the first part of this section would apply when there is 'guilty intention,' whereas the second part would apply when there is no such intention, but there is 'guilty knowledge'.

(4) Even if single injury is inflicted, if that particular injury was intended, and objectively that injury was sufficient in the ordinary course of nature to cause death, the requirements of Clause 3rdly to Section Page 19 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025 NEUTRAL CITATION R/CR.A/122/2018 JUDGMENT DATED: 28/03/2025 undefined 300 of the IPC , are fulfilled and the offence would be murder.

(5) Section 304 of the IPC will apply to the following classes of cases: (i) when the case falls under one or the other of the clauses of Section 300, but it is covered by one of the exceptions to that Section, (ii) when the injury caused is not of the higher degree of likelihood which is covered by the expression 'sufficient in the ordinary course of nature to cause death' but is of a lower degree of likelihood which is generally spoken of as an injury 'likely to cause death' and the case does not fall under Clause (2) of Section 300 of the IPC, (iii) when the act is done with the knowledge that death is likely to ensue but without intention to cause death or an injury likely to cause death. To put it more succinctly, the difference between the two parts of Section 304 of the IPC is that under the first part, the crime of murder is first established and the accused is then given the benefit of one of the exceptions to Section 300 of the IPC, while under the second part, the crime of murder is never established at all. Therefore, for the purpose of holding an accused guilty of the offence punishable under the second part of Section 304 of the IPC, the accused need not bring his case within one of the exceptions to Section 300 of the IPC.

(6) The word 'likely' means probably and it is distinguished from more 'possibly'. When chances of happening are even or greater than its not happening, we may say that the thing will 'probably happen'. In reaching the conclusion, the court has to place itself in the situation of the accused and then judge Page 20 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025 NEUTRAL CITATION R/CR.A/122/2018 JUDGMENT DATED: 28/03/2025 undefined whether the accused had the knowledge that by the act he was likely to cause death.

(7) The distinction between culpable homicide (Section 299 of the IPC) and murder (Section 300 of the IPC) has always to be carefully borne in mind while dealing with a charge under Section 302 of the IPC. Under the category of unlawful homicides, both, the cases of culpable homicide amounting to murder and those not amounting to murder would fall. Culpable homicide is not murder when the case is brought within the five exceptions to Section 300 of the IPC. But, even though none of the said five exceptions are pleaded or prima facie established on the evidence on record, the prosecution must still be required under the law to bring the case under any of the four clauses of Section 300 of the IPC to sustain the charge of murder. If the prosecution fails to discharge this onus in establishing any one of the four clauses of Section 300 of the IPC, namely, 1stly to 4thly, the charge of murder would not be made out and the case may be one of culpable homicide not amounting to murder as described under Section 299 of the IPC.

(8) The court must address itself to the question of mens rea. If Clause thirdly of Section 300 is to be applied, the assailant must intend the particular injury inflicted on the deceased. This ingredient could rarely be proved by direct evidence. Inevitably, it is a matter of inference to be drawn from the proved circumstances of the case. The court must necessarily have regard to the nature of the weapon used, part of the body injured, extent of the injury, degree of force used in Page 21 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025 NEUTRAL CITATION R/CR.A/122/2018 JUDGMENT DATED: 28/03/2025 undefined causing the injury, the manner of attack, the circumstances preceding and attendant on the attack.

(9) Intention to kill is not the only intention that makes a culpable homicide a murder. The intention to cause injury or injuries sufficient in the ordinary cause of nature to cause death also makes a culpable homicide a murder if death has actually been caused and intention to cause such injury or injuries is to be inferred from the act or acts resulting in the injury or injuries.

(10) When single injury inflicted by the accused results in the death of the victim, no inference, as a general principle, can be drawn that the accused did not have the intention to cause the death or that particular injury which resulted in the death of the victim. Whether an accused had the required guilty intention or not, is a question of fact which has to be determined on the facts of each case.

(11) Where the prosecution proves that the accused had the intention to cause death of any person or to cause bodily injury to him and the intended injury is sufficient in the ordinary course of nature to cause death, then, even if he inflicts a single injury which results in the death of the victim, the offence squarely falls under Clause thirdly of Section 300 of the IPC unless one of the exceptions applies.

(12) In determining the question, whether an accused had guilty intention or guilty knowledge in a case where only a single injury is inflicted by him and that injury is sufficient in the ordinary course of nature to Page 22 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025 NEUTRAL CITATION R/CR.A/122/2018 JUDGMENT DATED: 28/03/2025 undefined cause death, the fact that the act is done without premeditation in a sudden fight or quarrel, or that the circumstances justify that the injury was accidental or unintentional, or that he only intended a simple injury, would lead to the inference of guilty knowledge, and the offence would be one under Section 304 Part II of the IPC . "

20. In light of the legal proposition on the point and applying to the facts of the present case, it proves that there was no intention on the part of the accused to cause death, as after the first incident, matter ends there but the deceased, who had overpowered the accused and went to the shop of the accused where scuffle took place between them and in a sudden provocation, due to the conduct of the deceased, the accused stabbed him with the weapon knife, lying in the pan shop and thus, without any premeditation, in a sudden fight, in the heat of passion, the incident occurred and considering the nature of injury, it appears that the accused had not taken undue advantage or acted in a cruel manner.

21. For the reasons aforementioned, we therefore, hold that the accused appellant is not liable to be convicted under Section 302 of the IPC but would be liable to be convicted under Section 304 Part-II of the IPC , as the act appears to have been done with the knowledge that it was likely to cause death but without any Page 23 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025 NEUTRAL CITATION R/CR.A/122/2018 JUDGMENT DATED: 28/03/2025 undefined intention to cause death within the meaning of second part of Section 304.

22. Resultantly the appeal allowed in part. The conviction and sentence of life imprisonment under Section 302 is set aside. The appellant is convicted under Section 304 Part-II of the IPC and sentenced to undergo 10 years imprisonment with the fine amount imposed by the trial Court. The conviction under Section 323 and 504 of the IPC and Section 135 of the GP Act, is hereby confirmed and we do not find any ground to interfere with the sentence part. R&P, if any, be sent back to the trial Court concerned forthwith.

23. In view of the order passed in Criminal Appeal No. 122 of 2018, no order in Criminal Misc. Application No. 4 of 2024 and is disposed of accordingly.

(ILESH J. VORA,J) (SANDEEP N. BHATT,J) P.S. JOSHI Page 24 of 24 Uploaded by P.S. JOSHI(HC00177) on Fri Mar 28 2025 Downloaded on : Sat Mar 29 01:06:08 IST 2025